Business Development Agreement

This agreement is made on this day at Delhi between:

First Party:
M/s [First Party Name], a company incorporated and having its office at [First Party Address] through its [First Party Representative],
(Hereinafter referred to as the First Party)

AND

Second Party:
M/s [Second Party Name],
(Hereinafter referred to as the Second Party)

Whereas:

- The First party is a renowned company doing the business of [First Party Business].
- The Second Party is a company engaged in the work of corporate advising and, more specifically, in the work of business development of various companies through its very specialized and highly skilled activities and services.

The parties have discussed the matter of business development for the First party and have agreed to enter into an agreement for mutual benefits on the following terms:

1. The Second party shall take up the job of business development at its level on behalf of the First Party.
2. The Second party shall use all the ways and means in this regard for the business development of the First Party at its own cost.
3. The Second party shall gather all the information related to the sales, feedback, market search, and quality enhancement of the products of the First party and shall take effective steps for business development for the First party.
4. The Second party shall also gather all the detailed information relating to tenders issued by various departments, bodies, companies, etc., for the said product and shall forward the same to the First party and shall provide all possible support in this regard to the First party to procure the orders for its products. The Second party will do all the activities relating to the successful bidding by the First party for the said tenders as and when required.
5. The Second party has at present forwarded one specific lead with details to the First party regarding a tender floated by the [Details of Tender Issuer]. The Second party is providing all possible professional, advisory jobs in this regard with wide activities of field survey, technical survey, market survey, etc., which shall be very useful and beneficiary to the First party in determining the details of the said tender. The First party shall bid for the said tender and shall quote the rates as per its own business consideration.
6. The Second party shall be entitled to professional charges of [Percentage] of the total contract value quoted by the First party in the bid filed by it in the tender document. The

Second party shall claim the said amount only in the event the said tender is awarded to the First party by the department.

7. The First party shall be bound under this agreement to make the payment of the amount as described above after the award of the tender. In case the tender is not awarded to the First party due to any reasons, the Second party shall not be entitled to any professional charges at all. The Second party shall not claim any money against the expenses done during this process in any respects.

8. The taxes accruing in the release of the professional charges to the Second party shall be borne by the First party.

9. Parties are at liberty to continue this agreement till the time they wish. However, the present agreement fully covers the ongoing tender [Details of Ongoing Tender]. The Second party is providing all the professional services with regard to the said tender to the first party and is entitled to claim the professional charges against the services rendered in the said tender. The parties can keep this arrangement for other subsequent tenders and business deals at will. Specific communication for assignment of the subsequent business development work shall be issued by the First party if the First party wants to avail the services of the Second party. The percentage of professional charges shall also be negotiated on a case-to-case basis based on mutual agreement and shall be reduced in writing between the parties to avoid any kind of dispute or difference. The second party shall not be entitled to any money against expenses, etc., in any manner if the work has not been assigned to it by the First party through a written communication.

10. The present agreement can be terminated by the parties at their will after giving 15 days notice in writing by the intending party. However, at present, the agreement shall cover the ongoing tender of the [Details of Ongoing Tender Department] against which the Second party has already incurred substantial expenses. The First party shall not deny the professional charges to the Second party as described in para 6 hereinabove with regard to the ongoing tender under any circumstances after signing of the present agreement if the tender is awarded in favor of the First party.

11. The present agreement covers only the business development for the First party by the Second party. No other business or fiduciary relationship between the parties shall be created under this agreement in any form whatsoever.

The parties have now signed this agreement in presence of the witnesses.

(First Party) (Second Party)